

		bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past;" internal quotation marks omitted]; see also <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [factors, balancing test].) Both parties' sanctions requests are DENIED. Moving party shall give notice.
7.	Gombu, LLC vs. Do Builder and Design, Inc. 23-01367281	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production Plaintiff Gombu, LLC's motion to compel responses to its first sets of construction form interrogatories and requests for production is GRANTED. (See Code Civ. Proc., §§ 2030.290, 2033.280.) Defendant Do Builder and Design, Inc. is ORDERED to serve verified responses without objections to plaintiff's first set of construction form interrogatories and first set of requests for production, including the production of any and all responsive documents, within 14 days. Sanctions are GRANTED in the amount of \$1,646.46 in favor of plaintiff and against defendant Do Builder and Design, Inc., payable within 30 days. Plaintiff shall give notice.
8.	Robles vs. FCA US LLC 23-01344410	1. Motion - Other 2. Motion to Compel Deposition (Oral or Written) OFF CALENDAR- TRANSFERRED OUT OF COUNTY
9.	Beijing Luode Property Management Co., Ltd. vs. Qin 20-01151826	1. Motion to Compel Compliance with Discovery Order 2. Motion to Quash Service of Summons Cross-complainants Han Qin and Fan Yang's motion for terminating sanctions is CONTINUED to May 30, 2025, at 9:30 a.m. in Department C12. Specially appearing cross-defendants Beijing Zhongtai Chuangying Enterprise Management Co., Ltd., Kunsheng Enterprise Management Co., Ltd., Zhang Yi, Xie Zizheng, and

Qiu Xiaojian's motion to quash service of summons for lack of personal jurisdiction is **CONTINUED to May 30, 2025, at 9:30 a.m. in Department C12.**

The court hereby GIVES NOTICE TO ALL PARTIES of its intent to consider both the motion for terminating sanctions and motion to quash service of summons, including all the evidence submitted with respect to the same, interchangeably at the time of the continued hearing.

Specially appearing cross-defendants Kunsheng Enterprise Management Co., Ltd. (Kunsheng), Beijing Zhongtai Chuangying Enterprise Management Co., Ltd. (Zhongtai), Qiu Xiaojian (Xiaojian), and Xie Zizheng (Zizheng) are ORDERED TO SHOW CAUSE why the court should not impose an issue sanction establishing personal jurisdiction over them in lieu of a terminating sanction based on their willful failure to comply with the court's 8/13/24 and 1/29/25 jurisdictional discovery orders. (See *Ins. Corp. of Ireland, Ltd. v. Compagnie des Bauxites de Guinee* (1982) 102. S.Ct. 2099, 2101, 2106-2108; Code Civ. Proc., § 2023.030; *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787-788 [willful failure to comply]; see also *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991-992 [discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery].)

Each party may submit a brief of no more than five (5) pages, excluding declarations and other evidence, responding to the order to show cause above, by no later than Friday 4/25/25. The court will not consider late-filed papers beyond this deadline.

Kunsheng has willfully failed to comply with the court's 8/13/24 and 1/29/25 discovery orders by failing to serve verified responses to the subject special interrogatories to date. (See *Deyo, supra*, 84 Cal.App.3d at pp. 787-788 [willful failure to comply means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance"; "Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply."]; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [a response that is not verified is tantamount to no response at all]; 8/13/24 Order; 1/29/25 Minute Order; see also 4/7/25 Comp. of Exhibits (COE) at Ex. 11 [unverified responses to special interrogatories]; 4/14/25 Wei Decl. ¶¶ 3, 5 [showing Kunsheng has

the ability to verify its discovery responses]; 4/16/25 Oberle Surreply Decl. at Ex. 2 [same]; see also 1/2/25 Stip. & Order [confirming cross-defendants' knowledge of the 8/13/24 discovery order]; 1/30/25 Notice of Ruling [giving notice of the 1/29/25 order].)

Xiaojian and Zizheng have willfully failed to comply with the court's 8/13/24 and 1/29/25 discovery orders by failing to serve full and complete responses to the subject special interrogatories. Their further responses to the subject interrogatories are woefully evasive and incomplete.

For example, cross-complainants' special interrogatory No. 8 to Xiaojian and Zizheng asked each of them to "[d]escribe [his] role in enforcing the subject loan and guarantee" from the time period of 11/30/18 to 12/21/20. (1/16/25 Reply at Exs. B, D; see 8/13/24 Order, p. 4; see also Wei Decl. ¶ 2 [confirming service of the subject responses on 1/10/25]; 4/7/25 Oberle Decl. ¶ 23.) Xiaojian and Zizheng responded: "I was a member of the committee responsible for the Subject Loan and Guarantee. In said corporate capacity, I approved various action request[s] through the office automation system in relates [sic] to Zhongtai Chuangying's retaining law firms in China regarding the enforcement actions in China and retaining law firm in U.S. [sic] regarding the enforcement actions in U.S." (1/16/25 Reply at Exs. B, D; see 4/14/25 Wei Decl. ¶ 2; 4/7/25 Oberle Decl. ¶ 23.)

These responses are exceedingly vague, evasive, and incomplete. Cross-defendants were required to respond to the interrogatory "as complete and straightforward as the information reasonably available the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a).) "Where the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient. Likewise, a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo, supra*, 84 Cal.App.3d at p. 783.) "A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response." (*Id.* at p. 784.)

Here, Xiaojian's and Zizheng's responses do not specify their roles in enforcing the subject loan and guarantee. Instead, it vaguely states that each was some sort of "member" of an unidentified "committee responsible for the Subject Loan and

	Guarantee,” and that in “said” unidentified “corporate capacity” for an unidentified corporation/entity, they “approved various action requests” through an unspecified “office automation system,” regarding Zhongtai’s retention of an unidentified law firm somewhere in United States to bring “enforcements actions in the U.S.” on the subject loan and guarantee. (1/16/25 Reply at Exs. B, D.) Their responses deliberately avoid identifying what their roles and positions were, what “corporate capacity” they were purportedly acting in, what corporation(s)/entity(ies) they were acting on behalf of, what “committee was responsible for the Subject Loan and Guarantee,” the specific “action request[s]” they approved, and when they approved said requests. Their responses also deliberately avoid referring to Luode’s complaint filed in California seeking to enforce the subject loan and guarantee, despite its obvious and explicitly stated relevance here (8/13/24 Order, p. 3), and instead broadly and vaguely refer to “enforcement actions in the U.S.” Xiaojian’s and Zizheng’s responses to this interrogatory are further vague and incomplete considering their responses to special interrogatory No. 6, which state that they “did not hold any title or ha[ve] any responsibility within the Alter Ego Entities,” including Zhongtai (the lender on the subject loan and guarantee), Luode (the lender’s assignee), and “any individual or entity acting on their behalf.” (1/16/25 Reply at Exs. B, D [Xiaojian and Zizheng responses to special interrogatories at pp. 2, 4, defining “Alter Ego Entities” and responding to special interrogatory No. 6].) If Xiaojian and Zizheng did not have any responsibility at Zhongtai, Luode, or “any individual or entity acting on their behalf” (<i>ibid.</i>)—it remains wholly uncertain as to how or why someone else other than the lender, its assignee, or “any individual or entity acting on their behalf,” was “responsible for the Subject Loan and Guarantee,” and who the unidentified “committee” and/or unidentified corporation(s)/entity(ies) “responsible” for said loan and guarantee were, or how they had the authority to approve/deny Zhongtai’s requests to retain counsel to bring an enforcement action in the U.S. with respect to the same. (See <i>id.</i> at Exs. B, D [responses to special interrogatory No. 8].) The court has already twice ordered Xiaojian and Zizheng to provide further responses to these special interrogatories without objections on 8/13/24 and 1/29/25, and expressly ordered them to provide “full” and “complete” responses to the same the second time around. (8/13/24 Order; 1/29/25 Minute Order.) Cross-defendants have now had more than eight months to comply with
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	the 8/13/24 order, and almost three months to comply with the 1/29/25 order, and have continued to fail to do so. <u>Zhongtai</u> has willfully failed to comply with the court’s 8/13/24 and 1/29/25 discovery orders by providing evasive and incomplete responses to the subject special interrogatories and requests for production. For example, special interrogatory No. 4 to Zhongtai asked it to “[d]escribe [its] role in enforcing the subject loan and guarantee” from the time period of 11/30/18 to 12/21/20. (4/7/25 COE at Ex. 13; see 8/13/24 Order, p. 4.) Zhongtai responded that it was the original lender on the subject loan and guarantee, and that Zhongtai assigned its rights in the loan and guarantee to plaintiff Beijing Luode Property Management Co., Ltd. (Luode) for RMB 1,322,829,119.37 (which is more than \$180 million) on 4/27/20. (4/7/25 COE at Ex. 13.) Zhongtai also stated that Luode had not paid this amount in full, and that “[a]fter the aforementioned assignment, [Zhongtai] played no role in enforcing the Subject Loan and Guarantee.” (4/7/25 COE at Ex. 13 [responses to special interrogatory Nos. 4, 6].) This does not fully respond to the call of the question. The relevant time period is 11/30/18 to 12/21/20. (8/13/24 Order, p. 4.) Zhongtai did not assign the subject loan and guarantee until 4/27/20, and Xiaojian’s and Zizheng’s responses show that during the same time period, Zhongtai requested and was granted approval to retain counsel in the U.S. to bring an enforcement action on the subject loan and guarantee in the U.S. (1/16/25 Reply at Exs. B, D; see also Wei Decl. ¶ 2; 4/7/25 Oberle Decl. ¶ 23.) Zhongtai’s response fails to make any mention of its role as it relates to these enforcement efforts. Zhongtai’s 4/10/25 further responses to the subject requests for production, which are the only responses to the requests for production that it has verified to date, are also evasive and incomplete, as many of its responses continue to fail to state that “all” responsive documents have been produced. (See 4/7/25 COE at Exs. 14-15 [both unverified]; 4/16/25 Oberle Surreply Decl. ¶ 6, Ex. 1.) The responses also state that additional responsive documents “will be produced” and suggest that they are still forthcoming, but Zhongtai was required to produce “[a]ll responses, documents, and verifications” by no later than 2/28/25. (1/29/25 Minute Order.) Its persistent and continued failure to provide full and complete, code-compliant responses to the subject
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		requests for production prejudices cross-complainants' ability to properly oppose its pending motion to quash service of summons. As stated above, motions are CONTINUED to May 30, 2025, at 9:30 a.m. in Department C12. Court orders clerk to give notice.
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